

JASON M. BARBARA & ASSOCIATES, P.C.

EXHIBIT "B"

Page 1

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA and THOMAS E.

DESOUSA,

Plaintiffs,

v.

Index No.

RICHARD A. CALVAGNO II and

600371/2021

PATRICK J. KARCHER,

Defendants.

VIDEOCONFERENCE DEPOSITION OF
VINCENT CAMARDA

DATE: Thursday, February 1, 2024

TIME: 2:09 p.m.

LOCATION: Remote Proceeding

Boynton Beach, FL 33472

REPORTED BY: Hazel Elardo Asca

JOB NO.: 6440329

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A P P E A R A N C E S

ON BEHALF OF PLAINTIFFS DIANE C. DESOUSA AND THOMAS
E. DESOUSA:

JOSEPH INDUSI, ESQUIRE (by videoconference)
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ON BEHALF OF VINCENT CAMARDA:

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I N D E X

EXAMINATION:

By Mr. Indusi

PAGE

7

E X H I B I T S

NO.

DESCRIPTION

PAGE

(None marked.)

QUESTIONS INSTRUCTED NOT TO ANSWER

PAGE

LINE

34

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40

12

QUESTIONS REFUSED TO ANSWER

PAGE

LINE

38

20

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1 V. CAMARDA

2 THE REPORTER: Good afternoon. My
3 name is Hazel Elardo Asca; I am the
4 officer assigned by Veritext to take the
5 record of this proceeding. We are now on
6 the record at 2:09 p.m.

7 This is the deposition of
8 Mr. Vincent Camarda taken in the matter of
9 Diane C. DeSousa and Thomas E. DeSousa
10 against Richard A. Calvagno II and
11 Patrick J. Karcher, on the first of
12 February, 2024, at 86-15 Cobblestone Point
13 Circle, Boynton Beach, Florida, 33742
14 [sic].

15 I am a notary authorized to take
16 acknowledgments and administer oaths in
17 New York. Parties agree that I will swear
18 in the witness remotely.

19 And counselors, I would like to
20 stipulate that I can swear in Mr. Camarda,
21 being that I'm a New York notary and he is
22 testifying from Florida today.

23 MR. INDUSI: Yes.

24 MR. BERGER: Stipulated.

25 THE REPORTER: Thank you.

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1
2 Additionally, absent an objection on
3 the record before the witness is sworn,
4 all parties and the witness understand and
5 agree that any certified transcript
6 produced from the recording virtually of
7 this proceeding:

8 - is intended for all uses permitted
9 under applicable procedural and
10 evidentiary rules and laws in the same
11 manner as a deposition recorded by
12 stenographic means; and

13 - shall constitute written
14 stipulation of such.

15 At this time will everyone in
16 attendance please identify yourself, your
17 firm name, and who you're representing
18 today, beginning with Mr. Indusi.

19 MR. INDUSI: Joseph Indusi,
20 I-N-D-U-S-I, Law Office of Joseph Indusi,
21 of counsel to John Cuomo.

22 MR. CUOMO: And with Mr. Indusi,
23 John Cuomo, Law Office of John Cuomo, 11
24 Fern Drive, Commack, New York.

25 MR. BERGER: Heath Berger, Berger

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1 V. CAMARDA
2 Fischhoff Shumer Wexler & Goodman, attorney
3 for Vincent Camarda.

4 THE REPORTER: And Mr. Camarda, if
5 you could please state your full name for
6 the record, and your current address.

7 MR. CAMARDA: Vincent J. Camarda,
8 86-15 Cobblestone Point Circle, Boynton
9 Beach, Florida 33472.

10 THE REPORTER: Thank you.

11 Hearing no objection, I will now
12 swear in the witness.

13 Please raise your right hand.

14 WHEREUPON,

15 VINCENT CAMARDA,
16 called as a witness and having been first
17 duly sworn to tell the truth, the whole
18 truth, and nothing but the truth, was
19 examined and testified as follows:

20 THE REPORTER: Thank you, sir.

21 Actually, you're a little bit -- is there
22 a way for you to come a little bit closer
23 to your computer?

24 THE WITNESS: Me?

25 THE REPORTER: Yes.

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2 THE WITNESS: Really? I look -- I
3 look like I'm pretty good in the -- in the
4 picture. No?

5 THE REPORTER: I'm sorry, just the
6 audio. It's ok.

7 THE WITNESS: Oh, the audio.

8 THE REPORTER: You sound better
9 already. No problem.

10 THE WITNESS: Oh, okay.

11 THE REPORTER: Okay.

12 THE WITNESS: Okay.

13 THE REPORTER: Okay. Please proceed,
14 Counselor.

15 MR. INDUSI: Thank you -- so do you
16 want me to proceed?

17 THE REPORTER: Yes, just --
18 Mr. Berger. Yeah. He's back.

19 MR. INDUSI: Yes. He's back.

20 EXAMINATION

21 BY MR. INDUSI:

22 Q Good afternoon, Mr. Camarda. My
23 name is Joe Indusi and I represent Thomas
24 and Diane DeSousa in a civil action
25 against Richard Calvagno and

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Patrick Karcher. I'm going to ask you today a number of questions about that matter. You're not a party to that matter; you're here under a subpoena as a non-party witness. Do you understand?

A I do.

Q Okay. Before we begin, just a bunch of ground rules. Some of these -- yeah, I think they're all pretty much applicable, even though we're virtual.

Please let me ask the complete question so the court reporter can get it all down before you answer, even if you think you know what the answer is or what I'm looking for. If you let me complete, I'll do my best to let you answer completely before I fire off the next question.

Please keep your responses verbal and to words; the court reporter can't take down head shakes or nods, and can only take down verbal responses.

If you don't understand any question, you can say, "I don't understand

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1 V. CAMARDA
2 the question." I'll do my best to
3 rephrase the question so that it's
4 clearer.

5 And lastly, if you need a break
6 at any time, just let me know. We'll
7 mute, I guess -- you can make arrangements
8 to speak to Mr. Berger. And the only
9 caveat to that is it if I ask a question,
10 just ask that you answer that question
11 first, and then we can take a break.

12 Do you understand all those
13 rules?

14 A Yep.

15 Q Are you taking any medications
16 today that would affect your ability to
17 tell the truth?

18 A No.

19 Q Have you had any alcohol or
20 drugs in the last 24 hours?

21 A No.

22 Q And is there anything that
23 you're aware of that would affect your
24 ability to testify truthfully here today?

25 A No.

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2 Q Okay. You stated, I think a few
3 times now, your full name is
4 Vincent Camarda. Is that correct?

5 A Yes.

6 Q Have you ever changed your name?

7 A No.

8 Q What is your date of birth?

9 A 9/26/63.

10 Q Where do you live at the present
11 time?

12 A Florida.

13 Q How long have you lived there?

14 A For about a month.

15 Q Who do you live with?

16 A I just want to go back for a
17 second. I -- I live in New York, and I
18 just -- I live here in the winter.

19 Q Oh, okay.

20 A Just to clarify. I feel like it
21 was coming across incorrectly. I live in
22 New York, and I just -- I'm a snowbird. I
23 just come down during the winter.

24 Q Are you still a New York
25 resident?

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2 A I am.

3 Q Okay. Let's talk about Florida
4 first. You've been down there for about a
5 month. Do you live down there with
6 anybody?

7 A I do.

8 Q Who do you live with?

9 A I -- I don't understand how that
10 would be relevant to --

11 MR. BERGER: I don't understand the
12 relevance to the question. It has nothing
13 to do with the issues that are involved in
14 this case.

15 THE WITNESS: Yeah. I'm not
16 answering the question.

17 MR. INDUSI: Well, I think it's all
18 fair background information. I mean --

19 MR. BERGER: We're appearing here on
20 a subpoena in regard to an accident you
21 have concerning an incident that occurred
22 in New York. So, I think if you want to
23 ask the question of who's with him in New
24 York, I'm okay with that.

25 MR. INDUSI: Okay.

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1 V. CAMARDA

2 BY MR. INDUSI:

3 Q So just to clarify, the home in
4 Florida that you live in for the
5 wintertime, that's a second home of yours,
6 is that correct?

7 A Yes, it is.

8 Q And when you say you're a New
9 York resident, what's your New York
10 residence address?

11 A 325 Grand Central Avenue,
12 Amityville, New York 11701.

13 Q How long have you lived there?

14 A I'm not sure. Seven years, six?
15 I'm not sure.

16 Q Who do you live there with?

17 A I live there by myself.

18 Q Are you married?

19 A I am not.

20 Q Do you have children?

21 A I do.

22 Q How many?

23 A Three.

24 Q And they don't live with you?

25 A Correct.

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2 Q What is your highest level of
3 education?

4 A I have a CFP designation.

5 Q What is that?

6 A Certified financial planner.

7 Q Have you completed college?

8 A Yes. Four-year degree, BBA in
9 Accounting.

10 Q Four-year degree, BA; is that
11 correct?

12 A B -- B -- I'm sorry, BBA in
13 Accounting.

14 Q Is that a bachelor's degree in
15 accounting?

16 A Yep.

17 Q Are you currently employed?

18 A Yes.

19 Q Where are you employed?

20 A A.G. Morgan Financial Advisors.

21 THE REPORTER: I'm sorry,

22 J.P. Morgan?

23 MR. BERGER: A.G.

24 THE WITNESS: A -- A as in Andrew, G
25 as in Gregory, Morgan Financial Advisors.

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1 V. CAMARDA

2 THE REPORTER: Thank you.

3 THE WITNESS: Mm-hmm.

4 BY MR. INDUSI:

5 Q And is that -- are you an
6 employee of that company, or is that a
7 company you own and operate?

8 A I guess I'm both. I own it, but
9 I am an employee there as well.

10 Q And are you -- is this a company
11 you own by yourself, or do you have any
12 partners?

13 A I own it by myself.

14 Q What is the nature of that
15 employment?

16 MR. BERGER: Again --

17 THE WITNESS: I know, I was just --

18 MR. BERGER: Vinnie, stop. I'm going
19 to object to these questions. I mean,
20 your summons and complaint are based upon
21 some nuisance issues in regard to what
22 happened by the area where he lives.

23 I mean, we don't need to get into any
24 personal stuff, especially because there
25 is a litigation going on between the

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parties; and you know, at this point, that stuff doesn't seem to have any relevance to your questions here.

So, let's keep it to what you want to ask him in regard to your summons and complaint.

MR. INDUSI: So, I think I'm entitled to, for sure, to inquire as to some very basic background questions as to the witness. I'm not asking him for his list of employees, I'm asking him the general nature of his business in one sentence. And then I'm moving on.

These are all fair questions. I'm not asking his kids' names --

MR. BERGER: There are issues that your client has done, too, which we'll get on another day.

Vin, you can give a one-sentence answer of what you do.

THE WITNESS: Financial advisor.

MR. BERGER: There you go.

BY MR. INDUSI:

Q And where is that business

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1 V. CAMARDA

2 physically located?

3 A In Massapequa.

4 Q Have you ever been convicted of
5 any crime?

6 A No.

7 Q The neighborhood that you live
8 in, on Grand Central Avenue in Amityville,
9 how would you describe that neighborhood?

10 A I don't know what to --

11 MR. BERGER: I think is -- the
12 question, is it like a residential area?

13 THE WITNESS: Oh. Oh, yeah. It's a
14 residential area, it's not a commercial
15 area. It's -- you know, individual homes.

16 MR. INDUSI: I'm just going to wait
17 for your lawyer to get off the phone.

18 BY MR. INDUSI:

19 Q Would you agree that the
20 neighborhood is mostly single-family
21 residential homes?

22 A I do.

23 Q Do you know who lives at 320
24 Grand Central Avenue?

25 A I don't.

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1 V. CAMARDA

2 Q Do you know who Richard Calvagno
3 is?

4 A I do.

5 Q How do you know him?

6 A He lives across the street.

7 Q Do you know his address, sitting
8 here today?9 A I'm guessing, from your
10 question, that it's 320 Grand Central
11 Avenue.12 Q Okay. I don't need you to
13 guess. If you don't know his address
14 offhand, you could just say, "I don't know
15 the address offhand, but I know he lives
16 across the street from me." There's no
17 trick questions here. I'm just trying to
18 get answers to the questions.

19 A I -- yeah. I do not know then.

20 Q Okay. How would you
21 characterize your relationship with
22 Richard Calvagno?

23 A Friendly.

24 Q Have you ever been to his house?

25 A Many times.

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1 V. CAMARDA

2 Q Has he ever been to your house?

3 THE WITNESS: Heath, was that for us?

4 MR. BERGER: No, I'm sorry; no.

5 THE WITNESS: No? Okay.

6 He -- he has been to my house.

7 BY MR. INDUSI:

8 Q Do you speak to him regularly?

9 A I would not say regularly, no,
10 but I do speak to him.11 Q Would you say you speak to him
12 on a weekly, monthly, or daily basis?13 A In the summer, frequently.
14 In -- in the other months, maybe once a
15 month? Maybe less?16 Q Do you speak to him when you see
17 him, or do you speak to him on the phone?18 A All. Face-to-face, on the
19 phone.20 Q Sitting here today, when was the
21 last time you spoke to Richard Calvagno?22 A It was in the last -- within the
23 last week.24 Q And I'm presuming, since you're
25 in Florida and he's in New York, that was

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1 V. CAMARDA

2 over the phone?

3 A It was.

4 Q Did you speak to him about this
5 case and this deposition when you spoke to
6 him last, about a week ago?

7 A I did not.

8 Q Did you -- have you ever spoken
9 to him about this case?

10 A Yes, I have.

11 Q When was that?

12 A At the -- it's been a few times
13 since -- since the case started. It's --
14 various times.

15 Q And what was the subject matter
16 of that discussion?

17 A That the DeSousas were suing him
18 for a few different things.

19 Q Okay. And did he elaborate as
20 to what those things were when you spoke
21 to him?

22 A I'm a little confused about --
23 exactly what it is. I would just roughly
24 say, they say his car makes too much
25 noise; he's always having parties;

Page 20

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2 property's sloppy; stuff like that.

3 Q And is that information that you
4 gleaned, what you just said, from
5 discussions with Richard Calvagno, or from
6 some other source?

7 A From Rich.

8 Q Okay. Did you ever read the
9 pleadings in this case? The complaint or
10 the answer?

11 A I just forwarded it to Heath.
12 No.

13 Q When you said you forwarded it
14 to Heath, do you mean you forwarded to
15 Heath the notice of deposition that you
16 received to appear here today, or did you
17 mean the complaint and answer that I asked
18 you in the previous question?

19 A Oh, I'm sorry, thank you for
20 clarifying that. No, the notice that
21 required me to do this deposition.

22 Q So other than that notice, and I
23 believe that notice was a 1, 2, 3, 4, 5,
24 6-page document, other than that notice,
25 did you read any of the other documents

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2

that have been filed in connection with

3

this case?

4

A No.

5

Q Do you know who Patrick Karcher

6

is?

7

A No.

8

Q Who lives, to your knowledge, at

9

the Calvagno residence across the street

10

from you?

11

A Rich and his partner.

12

Q Do you know his partner's name?

13

A No.

14

Q Have you ever met his partner?

15

A Yes.

16

Q Approximately how many times?

17

A Not -- once or twice.

18

Q Are you aware of the vehicle

19

that Richard Calvagno drives?

20

A I am.

21

THE REPORTER: Sorry, what was that?

22

What was the answer?

23

THE WITNESS: Oh, my question? "I

24

am."

25

THE REPORTER: Oh, "I am." Thank

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1 V. CAMARDA

2 you.

3 THE WITNESS: Sorry.

4 BY MR. INDUSI:

5 Q And what is that vehicle that
6 Richard Calvagno drives, to your
7 knowledge?

8 A I don't -- I don't know. It's a
9 black sedan. Maybe it's a Dodge?

10 Q And what type of vehicle, if you
11 know, does Richard Calvagno's partner
12 drive?

13 A He -- his car was totaled, so I
14 don't know what car he drives currently.

15 Q How did you come to learn that
16 his car was totaled?

17 A Rich told me. That was quite a
18 while ago.

19 Q And so sitting here today, you
20 are unaware what vehicle Rich Calvagno's
21 partner drives? Is that your testimony?

22 A It is.

23 Q Have you ever seen either of
24 them drive a Dodge Charger?

25 A Well, I guess you're talking

Page 23

1 V. CAMARDA

2 about that black sedan that we're
3 referring to.

4 Q If you know that to be a Dodge
5 Charger.

6 A I'm not sure that it is. I -- I
7 think it might be, as I said before. I
8 think it's a Dodge. I've only seen Rich
9 drive it.

10 Q Have you ever seen Rich Calvagno
11 or his partner drive the black sedan,
12 which you believe may be a Dodge, fast on
13 Grand Central Avenue?

14 A No.

15 Q Have you ever --

16 A Absolutely not.

17 Q Have you ever seen either of
18 them drive the black sedan, that you
19 believe may be a Charger, aggressively on
20 Grand Central Avenue, in Amityville?

21 A Nope.

22 Q Have you -- when you've seen
23 Rich Calvagno drive the black sedan that
24 you believe to be a Charger, were you in
25 the car with him, or outside of the car?

Page 24

1 V. CAMARDA

2 Could you just elaborate when you've seen
3 him drive the car?

4 A I was never in his car. It was
5 just across the street. See him pull out,
6 drive down the road -- you know.

7 Q So you'd be inside your house or
8 outside your house when you've seen him
9 drive the car down the block?

10 A Both.

11 Q And have you -- in either
12 scenario, when you were inside or outside,
13 have you had the opportunity to hear the
14 noise emitted from that car when it was
15 driven down the road?

16 A Sure.

17 Q How would you characterize the
18 exhaust on the black vehicle that
19 Mr. Calvagno has driven, that you've seen?

20 A Normal.

21 Q And you said already you've
22 never been in the car?

23 A Correct.

24 Q Now do you know if Rich Calvagno
25 owns a boat?

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A I do.

Q Have you ever been on the boat?

A No.

Q Do you know what type of boat
Rich Calvagno owns?

A I don't.

Q Do you know if he owns more than
one boat?

A I don't.

Q Do you own a boat?

A I do.

Q Did you ever keep your present
boat, or any prior boat, in
Rich Calvagno's yard?

A No.

Q Have you ever known
Rich Calvagno to rent out his backyard for
dock space?

A No.

So I may have -- I -- I answered
your question, two questions ago,
literally. But maybe I didn't answer it
correctly.

So you said, has my boat ever

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1 V. CAMARDA

2 been in Richie's yard.

3 Q Correct.

4 A The answer is no. Has it been
5 in the water, at Richie's house? Yes.

6 Q Okay.

7 A Is that what you were asking?

8 Q Well, I presume it wasn't on the
9 grass, so I apologize for my
10 mischaracterization there.

11 A Okay. People put their --

12 Q Did you ever tie your boat up to
13 any part of Rich Calvagno's bulkhead or
14 floating dock that's attached to the
15 property that he lives at, at 320 Grand
16 Central Avenue, Amityville.

17 A Yes.

18 Q And in what capacity did you
19 attach your boat to any part of his
20 property?

21 A I don't know exactly what you
22 mean by that; by rope. Is that what you
23 mean? Attach it by rope?

24 Q And was that for storage
25 purposes, or was that, "Hey, I'm going to

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1 V. CAMARDA

2 drive my boat over to your yard, have a
3 cocktail, and go home?"4 A No, no, I keep my boat at Rich's
5 house.

6 Q Okay.

7 A In the water.

8 Q When you say you keep it at
9 Rich's house, is that during the winter --
10 during the boating season here in
11 New York?

12 A Yes.

13 Q And that's throughout the entire
14 season you keep it there, not a part of
15 it; is that correct?16 A I don't know exactly -- I mean,
17 you know, in May it goes in the water and
18 it's there for a few months, and then it
19 comes out.20 Q Understood. You don't keep it
21 there over the winter?

22 A Do not.

23 Q Do you pay Rich Calvagno rent to
24 keep your boat there?

25 A I do not.

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1 V. CAMARDA

2 Q Why are you allowed to keep your
3 boat in Rich Calvagno's yard?

4 A He's a good man.

5 Q Did you ever observe any other
6 boats being kept in Rich Calvagno's yard
7 while you've had your boat tied up there?

8 A Yes.

9 Q How many other boats?

10 A I don't know. Two?

11 Q I was going to say, at least
12 more than one, right?

13 A Yeah. Uh-huh.

14 Q And can you just describe how
15 and where you tied up in his backyard?

16 A It's been in various spots in
17 the few years that I've been a boat owner.
18 Most recently, it's toward the back of his
19 house.

20 Q So there was a boat in front of
21 you and a boat behind you? Side --

22 A No. I'm all the way in the
23 front. Rich -- Rich's boat was behind
24 mine.

25 Q So Rich -- you do know that Rich

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1 V. CAMARDA

2 does own a boat, then?

3 A Yes. But your question was,
4 "what kind of boat?" And I don't know
5 what kind of boat.

6 Q Okay. So Rich's boat is kept
7 behind yours, and then there's another
8 boat that's kept behind Rich's boat?

9 A Yes.

10 Q And is there any other boats
11 that you're aware of that are kept in that
12 backyard of Rich Calvagno's house?

13 A So -- his -- his canal goes
14 behind the back of his house, and up the
15 side. My boat is up the side. There's
16 also a boat on the canal.

17 Q Which would be along the back
18 property line?

19 A Exactly.

20 Q So you keep your boat along the
21 side property line? I believe that would
22 be the southern property line of the
23 house?

24 A No. Oh -- no. No. Nope. The
25 northern --

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1 V. CAMARDA

2 Q Northern --

3 A -- side of the property.

4 Q Right. Okay.

5 A Yeah, there's no -- there's no
6 water on the southern side.

7 Q Okay. Do you know if Rich
8 Calvagno has ever had any weddings in his
9 yard?

10 A Yes, he did.

11 Q And did you attend that wedding?

12 A No, I did not.

13 Q How did you know that he had a
14 wedding in his yard?

15 A He told me was -- he has a
16 friend that couldn't afford to get married
17 at a place, so he was nice enough to let
18 them use his -- his yard.

19 Q I just want to go back quick --
20 how many years have you kept your boat in
21 Rich Calvagno's yard during the boating
22 season?

23 A I believe it's five. It might
24 be four. Four or five.

25 Q And what type of boat do you

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2 keep there?

3 A It's a catamaran.

4 Q Powerboat?

5 A It's a powerboat. Power
6 catamaran.

7 Q World Cat?

8 A No. It's -- it's an Aquila 36
9 Cruiser.

10 Q Got it. Never heard of that
11 make. Interesting. Not many cat boats
12 out there.

13 A I'm probably the only one.

14 Q Okay. So I've asked you some
15 questions about Mr. Camarda -- I'm sorry,
16 Mr. Calvagno.

17 A Right.

18 Q Do you know who Thomas DeSousa
19 is?

20 A I do.

21 Q How do you know him?

22 A He lives next door to me.

23 Q And you lived there, I think you
24 said, about six or seven years?

25 A Six or seven.

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1 V. CAMARDA

2 Q Is that right?

3 A Yes, I said six or seven. I'm
4 not exactly sure.

5 Q When you moved there, did
6 Mr. DeSousa live there already?

7 A Yes, he did.

8 Q And did you meet him as soon as
9 you moved in?

10 A I would say so.

11 Q You would say so, or --

12 A I would say so. You know. You
13 know -- within --

14 Q How would you describe your
15 relationship with Tom DeSousa when you
16 first moved into the neighborhood?

17 A Friendly.

18 Q Did you guys ever go out to
19 dinner, hang out --

20 A No.

21 Q -- that?

22 A Just neighbors next door. I
23 wave hello.

24 Q Did you -- so, sitting here
25 today, how would you characterize your

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2 relationship with Tom DeSousa?

3 A Not good.

4 Q And what, in your opinion,
5 caused the relationship to deteriorate?

6 A Him cursing me out, threatening
7 to kill me, rip my heart out. I could
8 just keep going. You want me to keep
9 going?

10 Q I want you to answer the
11 question completely, sure.

12 A Yeah, so just -- suing me for my
13 garage -- that's enough. That's more
14 than --

15 Q When you were friendly, had you
16 ever been in his house?

17 A I have never been in his house.

18 Q And had he ever been in your
19 house when you guys were friendly?

20 A He has never been in my house.

21 Q Was there one particular event
22 that caused the relationship to sour, to
23 the best of your recollection?

24 A Let me think. So --

25 MR. BERGER: You know, I'm going to

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2 have my client not answer these. There is
3 a litigation going on between -- that
4 involves your client and my client, and
5 those may be issues that are going to be
6 raised at another point of litigation.

7 I think he's indicated that his
8 relationship with Mr. DeSousa is not good.

9 MR. INDUSI: Yean, I don't think
10 that's a viable objection --

11 MR. BERGER: That's okay. I'm going
12 to object, and advise him not to answer.
13 If you want to go into court we can deal
14 with it, but there is a federal court case
15 that's going on, and it does have issues
16 concerning his relationship with
17 Mr. DeSousa, so I don't really want to get
18 into those issues that are involved into
19 another lawsuit.

20 He's a third party -- he's appearing
21 here as a witness, not as a party.

22 MR. INDUSI: So I'm going to -- so
23 you're directing him not to answer this
24 question?

25 MR. BERGER: Yeah --

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2 MR. INDUSI: Basically because
3 there's another pending lawsuit?

4 MR. BERGER: I can -- you're right.
5 And if you're going to get into his
6 relationship, I think those are issues
7 that involve the other lawsuits.

8 MR. INDUSI: I think it also is very
9 relevant here, because it goes to bias.

10 MR. BERGER: And you can bring that
11 out in your trial, I guess.

12 MR. INDUSI: Well, we're at a
13 deposition, so I'm going to -- if you're
14 going to direct him not to answer the
15 question, then we'll have to address with
16 the court, and we may have to bring him
17 back, so --

18 MR. BERGER: Okay.

19 MR. INDUSI: Are you going to object,
20 then, to any line of questioning about his
21 relationship with the party in this case?

22 MR. BERGER: I think he's testified,
23 and he will continue to testify, about how
24 he doesn't have a good relationship with
25 him, but I'll let you ask the questions,

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2 and we'll go from there.

3 MR. INDUSI: So the last question I
4 posed, what his recollection of the first
5 time the relationship broke down, you're
6 directing him not to answer that question?

7 MR. BERGER: I don't see the
8 relevancy to that.

9 MR. INDUSI: And I'm telling you I
10 think there's a relevancy, and you're
11 saying --

12 MR. BERGER: Okay.

13 MR. INDUSI: -- you're still
14 directing him not to answer? Relevance is
15 not a basis to direct a person --

16 MR. BERGER: Okay. I'm telling him
17 not to answer.

18 MR. INDUSI: Okay.

19 BY MR. INDUSI:

20 Q Did you ever speak to
21 Mr. DeSousa -- did you ever have any
22 discussion with Mr. DeSousa about
23 Rich Calvagno?

24 A No.

25 Q Did Tom DeSousa ever approach

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2 you to get you to join in his lawsuit
3 against Rich Calvagno?

4 A No.

5 Q Have you ever seen Tom DeSousa
6 block Richard Calvagno's driveway so that
7 he could not leave for work?

8 A No.

9 Q Do you know who Jim and
10 Pat Schneider are?

11 A I do, but those aren't the
12 correct last names.

13 Q You know who Jim Venezia and
14 Pat Schneider are?

15 A Yes.

16 Q Are those the correct names?

17 A Yes.

18 Q What's your relationship with
19 them?

20 A They live next door to me.

21 Q Do you have a friendly
22 relationship with them?

23 A I have no relationship with
24 them.

25 Q Is there any particular reason

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2 that you have no relationship with them?

3 A What would that have to do with
4 Rich fighting with Tom?

5 Q Well, I'm -- so --

6 A What would that have -- what
7 would that have to do --

8 MR. BERGER: You can give a general
9 answer to the question.

10 THE WITNESS: Yeah, I answered the
11 question.

12 BY MR. INDUSI:

13 Q What was your answer?

14 A I have no relationship with
15 them.

16 Q And do you have any -- sitting
17 here today, why do you not have any
18 relationship with them?

19 A And I'll say it again, it has
20 nothing to do with this. I'm not
21 answering the question.

22 MR. INDUSI: So we're going to mark
23 here, again, that the witness is refusing
24 to answer a question. It's a neighborhood
25 dispute. His neighbors and his

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2 relationship with his neighbors are
3 relevant.

4 Again, there's no -- you can't just
5 say, "I don't want to answer a question
6 because I don't want to answer a
7 question."

8 THE WITNESS: Sure I can. And I just
9 did.

10 MR. BERGER: Okay. That's it. Let's
11 just move on.

12 BY MR. INDUSI:

13 Q So are you refusing to answer
14 any other questions about Jim Venezia and
15 Pat Schneider?

16 A I'll tell you that they are
17 involved in a lawsuit against me with
18 Tom and Diane DeSousa. That's my answer.

19 Q And is that lawsuit why you say
20 you have no relationship with them?

21 A Yes.

22 Q And is that lawsuit pending now,
23 still today, or is that lawsuit over?

24 A Pending.

25 Q Pending? So it's still pending

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2 to your knowledge?

3 A Yes.

4 Q And what is the subject matter
5 of that lawsuit?

6 MR. BERGER: Again, we're here to
7 talk about the issues in this case and
8 what you need my client to testify to, you
9 can continue to testify. Talk about
10 issues and other lawsuits that your client
11 is involved with against my client, I'm
12 going to advise him again not to answer
13 that, and we'll move forward.

14 You can ask him those questions after
15 any deposition you have concerning that
16 case. But here, you've subpoenaed him to
17 answer questions in regard to the summons
18 and complaint in regard to this action.

19 BY MR. INDUSI:

20 Q Now you said before you never
21 read the summons and complaint in this
22 action. Is that correct?

23 A Correct.

24 Q But you did read the notice of
25 deposition and -- that was served on you

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2 before you forwarded it to Mr. Berger; is
3 that correct?

4 A Correct.

5 Q And did you see that you are
6 listed as a witness in connection with
7 this matter that we're here for today?

8 A I just presumed that because I
9 was getting one, that I would be a
10 witness, yes.

11 Q Did you notice that attached to
12 that subpoena is two pages of a response
13 filed by Rich Calvagno which specifically
14 lists you as a witness in that complaint?

15 A I didn't -- I did not see that.

16 Q Sitting here today, do you --
17 what are you a witness to in connection
18 with the complaint against Mr. Calvagno?

19 A I'm here because you asked me to
20 be here to give you some information
21 regarding the dispute between Tom and
22 Rich. And that's what I'm doing.

23 Q Right. So again, I'm just going
24 to rephrase the question. It's not a
25 trick question. Just so you understand

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2 what my question is, Rich Calvagno noted
3 your name as a witness in this case. We
4 didn't choose you as a witness;
5 Rich Calvagno listed you as a witness.
6 I'm asking you the question, what did you
7 witness in this case to your knowledge?

8 A I have no idea, so any question
9 you ask me I will answer it completely
10 with regards to this situation between the
11 two of them.

12 Q Did you ever have any specific
13 questions -- discussions -- withdrawn,
14 sorry. Did you have any specific
15 discussions with Richard Calvagno about
16 you being a witness for him in this case?

17 A He just said that "I'm putting
18 you down as part of this case, and they're
19 going to ask you some questions." I said,
20 "No problem."

21 Q And when was that, that that
22 discussion occurred?

23 A It was quite a while ago.

24 Q And was there any specific thing
25 that he told you he wanted you to be a

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2 witness for?

3 A He didn't give me anything that
4 was specific; "talk about this, talk about
5 that." No; he didn't.

6 MR. INDUSI: Give me one second.

7 THE WITNESS: Heath, I have another
8 appointment at three o'clock.

9 MR. BERGER: Okay. I think we should
10 be okay. Join the club.

11 THE WITNESS: Yeah.

12 MR. INDUSI: I have nothing further.

13 MR. BERGER: Okay. We appreciate it.

14 THE REPORTER: Okay. So if there's
15 nothing else, I just need to take the
16 transcript order, Mr. Indusi. Is it
17 regular turnaround time, which is 10-14
18 days?

19 MR. INDUSI: Yes.

20 THE REPORTER: Okay. And will you be
21 providing one to Mr. Berger? Mr. Berger,
22 are you ordering? How does it work
23 between you?

24 MR. BERGER: I'm a third party, so
25 I'm not ordering it. You could --

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2 MR. INDUSI: Yep.

3 THE REPORTER: Okay. All right. I
4 just have a few spelling questions, so if
5 there's nothing else, this concludes
6 today's testimony given by
7 Mr. Vincent Camarda.

8 We are off the record. The time is
9 2:47 p.m.

10

11 (Whereupon, at 2:47 p.m., the
12 proceeding was concluded.)

13

14

15 VINCENT CAMARDA

16

17

18 Subscribed and sworn to

19 before me this _____

20 day of _____, 2024.

21

22

23 Notary Public

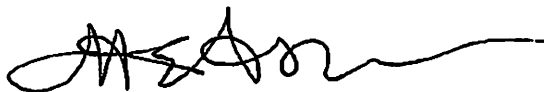
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CERTIFICATE OF DEPOSITION OFFICER

I, HAZEL ELARDO ASCA, the officer before whom the foregoing proceedings were taken, do hereby certify that any witness(es) in the foregoing proceedings, prior to testifying, were duly sworn; that the proceedings were recorded by me and thereafter reduced to typewriting by a qualified transcriptionist; that said digital audio recording of said proceedings are a true and accurate record to the best of my knowledge, skills, and ability; that I am neither counsel for, related to, nor employed by any of the parties to the action in which this was taken; and, further, that I am not a relative or employee of any counsel or attorney employed by the parties hereto, nor financially or otherwise interested in the outcome of this action.



HAZEL ELARDO ASCA

Notary Public in and for the
State of New York

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CERTIFICATE OF TRANSCRIBER

I, NICOLE MURRAY, do hereby certify that this transcript was prepared from the digital audio recording of the foregoing proceeding, that said transcript is a true and accurate record of the proceedings to the best of my knowledge, skills, and ability; that I am neither counsel for, related to, nor employed by any of the parties to the action in which this was taken; and, further, that I am not a relative or employee of any counsel or attorney employed by the parties hereto, nor financially or otherwise interested in the outcome of this action.



NICOLE MURRAY

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MY COMMISSION EXPIRES:

[& - aquila]

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New York Code

Civil Practice Law and Rules

Article 31 Disclosure, Section 3116

(a) Signing. The deposition shall be submitted to the witness for examination and shall be read to or by him or her, and any changes in form or substance which the witness desires to make shall be entered at the end of the deposition with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness before any officer authorized to administer an oath. If the witness fails to sign and return the deposition within sixty days, it may be used as fully as though signed. No changes to the transcript may be made by the witness more than sixty days after submission to the witness for examination.

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